TENTATIVE RULINGS

LAW AND MOTION CALENDAR

Judge Thomas J. Lo

Department C44

Hearing Date and Time: August 28, 2026 @ 8:30 AM

Court Reporters: Official court reporters (i.e., court reporters employed by the Court) are **NOT** provided for law and motion matters in this department. If a party desires a record of a law and motion proceeding, it will be the party's responsibility to provide a court reporter. Parties must comply with the Court's policy on the use of privately retained court reporters which can be found at:

- Civil Court Reporter Pooling; and
- For additional information, please see the court's website at Court Reporter Interpreter Services for additional information regarding the availability of court reporters.

Tentative rulings: The court endeavors to post tentative rulings on the court's website in the morning, prior to the hearing. However, ongoing proceedings such as jury trials may prevent posting by that time. Tentative rulings may not be posted in every case. Please do not call the department for tentative rulings if tentative rulings have not been posted. The court will not entertain a request to continue a hearing or the filing of further documents once a tentative ruling has been posted.

Submitting on tentative rulings: If all counsel intend to submit on the tentative ruling and do not desire oral argument, please advise the Courtroom Clerk or Courtroom Attendant by calling (657) 622-5244. Please do not call the department unless all parties submit on the tentative ruling. If all sides submit on the tentative ruling and so advise the court, the tentative ruling shall become the court's final ruling, and the prevailing party shall give notice of the ruling and prepare an order for the court's signature if appropriate under Cal. R. Ct. 3.1312.

Non-appearances: If nobody appears for the hearing and the court has not been notified that all parties submit on the tentative ruling, the court shall determine whether the matter is taken off calendar or the tentative ruling becomes the final ruling. The Court also might make a different order at the hearing. (*Lewis v. Fletcher Jones Motor Cars, Inc.* (2012) 205 Cal.App.4th 436, 442, fn. 1.).

Appearances: Department C44 conducts non-evidentiary proceedings, such as law and motion hearings, remotely by Zoom videoconference pursuant to Code of Civil Procedure section 367.75 and Orange County Local Rule 375. Any party or attorney, however, may appear in person by coming to Department C44 at the Central Justice Center, located at 700 Civic Center Drive West in Santa Ana, California. All counsel and self-represented parties appearing in-person must check in with the courtroom clerk or courtroom attendant before the designated hearing time.

All counsel and self-represented parties appearing remotely must check-in online through the court's civil video appearance website at **https://www.occourts.org/media-relations/civil.html** before the designated hearing time. Once the online check-in is completed, participants will be prompted to join the courtroom's Zoom hearing session. Participants will initially be directed to a virtual waiting room pending the start of their specific video hearing. Check-in instructions and instructional video are available at **https://www.occourts.org/media-relations/aci.html**. The Court's "Appearance Procedures and Information--Civil Unlimited and Complex" and '"Guidelines for Remote Appearances" also are available at **https://www.occourts.org/media-relations/aci.html**. Those procedures and guidelines will be strictly enforced.

Public Access: The courtroom remains open for all evidentiary and non-evidentiary proceedings. Members of the media or public may obtain access to law and motion hearings in this department by either coming to the department at the designated hearing time or contacting the courtroom clerk at (657) 622-5244 to obtain login information. For remote appearances by the media or public, please contact the courtroom clerk 24 hours in advance so as not to interrupt the hearings.

Arguments: The court will allow arguments on the pending motions up to 10 minutes per side, but those arguments must not repeat arguments previously made in each parties' applicable briefs.

No filming, broadcasting, photography, or electronic recording is permitted of the video session pursuant to California Rules of Court, rule 1.150 and Orange County Superior Court rule 180.

#	Case Name	Tentative
202	**Avery vs. Barandiaran** **2020-01159013**	**Motion for Entry of Judgment** The motion by plaintiff Rachel Avery, Successor Trustee of the Finiguerra Family Trust, for an Order of the Court directing the clerk to enter a Clerk's Judgment against defendants Dan Peterson, Greenpath, Ignacio Barandiaran, Pacific Coast Title, Reverse Mortgage Advisors of America, and True Concept Title, is DENIED, without prejudice to moving party proceeding against these defendants by ordinary default procedures. This action is not one "arising upon contract," or upon a separate "judgment for the recovery of money or damages only." (Code Civ. Proc., § 585, subd. (a).) Thus, a clerk's default judgment is not available; rather, entry of any default judgment will require evidence to be evaluated by the court. (*Holloway v. Quetel* (2015) 242 Cal.App.4th 1425, 1432 ["a clerk's judgment is appropriate only in cases where the determination of damages is a purely ministerial act, that is, where there is 'some definite, fixed amount of damages or where such may be ascertained by computation made by the clerk ... [i]f evidence must be taken to establish the amount due ..., the clerk may not render judgment ... if the complaint seeks nonmonetary relief or monetary relief in amounts that require additional evidence or the exercise of judgment to determine, the plaintiff must request entry of judgment by the court;" internal citations omitted]; *Bristol Convalescent Hospital v. Stone* (1968) 258 Cal.App.2d 848, 859 ["Evidence must be taken to prove the amount of damages in an action sounding in tort"]; see also original Complaint, prayer for damages at ¶¶ 1, 3, 6 [seeking "rescission of the reverse mortgage," "return of property wrongfully taken," and "a statutory penalty of twice the value of the property recovered"].) The court sets an **Order to Show Cause re: Dismissal for February 19, 2027 at 8:30 a.m. in Department C44**. Plaintiff shall file appropriate default packets as to the previously defaulted defendants by that date. If plaintiff does not file a default packet as to any previously defaulted defendant by that date, they may be dismissed at that time. Counsel for moving party should also be prepared at the current hearing to discuss the status of defendant Sophie Measkhan, who was named as a defendant in the First Amended Complaint (ROA 39, ¶¶ 7, 27). There is no record in the court's files that this defendant was served with process, has appeared, been defaulted, or been

		dismissed. Clerk shall give notice.
205	**Connectcomp, Inc. vs. Armstrong Supply Chains Solutions, LLC** **2026-01540328**	**Motion to Compel Arbitration** Defendant Armstrong Transportation Management, LLC's petition to compel arbitration is GRANTED as follows. There is no opposition to the motion. Plaintiff Connectcomp, Inc. (plaintiff) is ORDERED to arbitrate its claims against Armstrong Transportation Management, LLC (ATM) pursuant to arbitration provision in ATM's "Terms and Conditions." (See Bagdanovic Decl. at Ex. C, p. 6 ["For all matters aside from equitable and extraordinary relief, Customer and Company agree to binding arbitration before a single arbitrator pursuant to the rules of the American Arbitration Association."].) This petition is based on plaintiff's signed and completed credit application with ATM, which provides that "[a]ll services rendered are subject to [ATM's] Terms and Conditions of Service" (Terms and Conditions) and provides a conspicuous hyperlink to the same, and which Terms and Conditions in turn set forth the subject arbitration agreement. (See Bagdanovic Decl. ¶¶ 7-15, Exs. A-C.) The arbitration agreement is governed by the substantive provisions of the Federal Arbitration Act (FAA) because the subject contract involves interstate commerce. (9 U.S.C. § 1; Bagdanovic Decl. ¶¶ 1, 4-15, Exs. B-C.) The court finds that Tennessee law governs all other issues pursuant to the choice of law provision in the subject contract, including the procedural rules applicable to this motion and any contract formation/validity issues. (See 9 U.S.C. § 2; *Arthur Andersen LLP v. Carlisle* (2009) 129 S.Ct. 1896, 1902-1903 [pursuant to § 2 of FAA, state contract law governs the validity, revocability, and enforceability of an arbitration agreement]; *Pitzer College v. Indian Harbor Ins. Co.* (2019) 8 Cal.5th 93, 100-101 [choice of law analysis]; *Nedlloyd Lines B.V. v. Superior Court* (1992) 3 Cal.4th 459, 467 [that one of the parties resides in a foreign state gives the parties a reasonable ground for choosing that state's law]; *Morgan Keegan & Co., Inc. v. Smythe* (Tenn. 2013) 401 S.W.3d 595, 603 ["arbitration agreements ... are now favored in Tennessee both by statute and existing caselaw"]; *Mastick v. TD Ameritrade, Inc.* (2012) 209 Cal.App.4th 1258,

		1267; see also Bogdanovic Decl. ¶ 1 & Ex. C ["These Terms and Conditions of Service and the relationship of the parties shall be construed according to the laws of the State of Tennessee, without giving consideration to principles of conflict of laws."].) ATM has demonstrated the existence of an agreement to arbitrate the controversy between ATM and plaintiff. (See *T.R. Mills Contractors, Inc. v. WRH Enterprises, LLC* (Tenn. Ct. App. 2002) 93 S.W.3d 861, 870; see also Bagdanovic Decl. ¶¶ 7-15, Exs. A-C.) Plaintiff has declined to agree to arbitrate. (See, e.g., ROA Nos. 49 [Pl. CMC Stmt. ¶ 10c(5), failing to indicate it is willing to submit to binding private arbitration], 51 [notice of non-opposition, electing not to oppose the motion but expressly disclaiming the admission of any allegations/contentions in the moving papers].) Plaintiff has also expressly "elect[ed] not to file [an] opposition." (ROA No. 51 [notice of non-opposition, p. 2].) Under the procedural rules of the Tennessee Uniform Arbitration Act, where, as here, the "motion ... show[s] an agreement to arbitrate" and the other party "does not oppose the motion, then the court must order the parties to arbitrate" and stay the action as to any claims subject to the arbitration. (Tenn. Code Ann. § 29-5-308(a), (g).) This action is STAYED **as to ATM only** pending completion of arbitration or until further order of the court. The court schedules an Alternative Dispute Resolution (ADR) Review Hearing as to Plaintiff and ATM only on **April 16, 2027 at 8:30 a.m. in Department C44.** **Case Management Conference continued to February 19, 2027 at 8:30 a.m. in Department C44.** The parties are ordered to meet and confer 30 days before the CMC per CRC, Rule 3.724, and file Case Management Statements 15 days prior to the CMC per CRC, Rule 3.725. ATM shall give notice.
207	**Gutierrez vs. Rivian Automotive, Inc.** **2025-01533837**	**Motion to Compel Arbitration** Defendant Rivian Automotive, Inc.'s motion to compel arbitration is DENIED.

Under both the California Arbitration Act (CAA) and the Federal Arbitration Act (FAA), the party seeking to compel arbitration bears the burden of proving the existence of an agreement to arbitrate by a preponderance of the evidence. (Code Civ. Proc., § 1281.2 [CAA]; *Engalla v. Permanente Medical Group, Inc.* (1997) 15 Cal.4th 951, 972 [CAA]; *Knutson v. Sirius XM Radio Inc*. (9th Cir. 2014) 771 F.3d 559, 564-565 [FAA]; *Pinnacle Museum Tower Assn. v. Pinnacle Market Development (US), LLC* (2012) 55 Cal.4th 223, 236 [applying FAA].)

Defendant has failed to meet this burden as the arbitration agreement it relies on appears in a contract that has nothing to do with this case. (See *Johnson v. Walmart Inc.* (9th Cir. 2023) 57 F.4th 677, 681 [where the plaintiff's claim "does not arise out of the contract containing the arbitration agreement" but rather, "arises out of an entirely separate transaction," it is "the existence, not the scope, of an arbitration agreement" that is at issue].)

Specifically, defendant has brought this motion pursuant to an arbitration provision in a "Rivian Motor Vehicle Purchase Agreement" (purchase agreement) for the cash purchase of a 2023 Rivian R1T, VIN 7FCTGAAAXPN017305, entered into between plaintiff Gilberto Jose Gutierrez and Rivian, LLC in Venice, California on 1/9/23. (Ameripour Decl. ¶ 2, Ex. 1.)

This action, however, does not arise out of plaintiff's purchase of that vehicle. This action arises out of plaintiff's lease of an entirely different vehicle—a 2025 Rivian R1S, VIN 7PDSGBBA9SN050254—from Rivian, LLC in Costa Mesa, California on 12/13/24. (Compl. ¶ 9.)

The purchase agreement only "governs [plaintiff's] purchase and [defendant's] sale of the vehicle" in that agreement, i.e., the 2023 Rivian R1T, and does not purport to govern plaintiff's purchase or lease of any other vehicles. (See Ameripour Decl. at Ex. 1.) Defendant has failed to explain how an arbitration provision in such an agreement applies to an action arising out of plaintiff's lease of an entirely different vehicle nearly two years later. (See Mtn. Memo. P&As, in passim.)

Indeed, it does not. "To be arbitrable, the dispute must relate to the contract." (*Jackson v. Amazon.com, Inc*. (9th Cir. 2023) 65 F.4th 1093, 1101.) The claims must be "rooted" in the contract containing the arbitration provision or in the relationship between the parties that was created by that contract. (*Ahern v. Asset Management Consultants, Inc.* (2022) 74 Cal.App.5th 675, 692-

		693; *Rice v. Downs* (2016) 248 Cal.App.4th 175, 188.) "[E]ven under broad arbitration clauses..., [the complaint's] factual allegations must at least ' "touch matters" covered by the contract containing the arbitration clause.' " (*Jackson v. Amazon.com, Inc*. at p. 1101.) In other words, "[a]n arbitration agreement is tied to the underlying contract containing it, and applies 'only where a dispute has its real source in the contract. The object of an arbitration clause is to implement a contract, not to transcend it.' (*Litton Financial Printing Div. v. NLRB* (1991) 501 U.S. 190, 205, 111 S.Ct. 2215, 115 L.Ed.2d 177 (*Litton*).) No authority permits sending a matter to arbitration simply because the same parties agreed to arbitrate a different matter." (*Moritz v. Universal City Studios LLC* (2020) 54 Cal.App.5th 238, 246; see *Johnson v. Walmart Inc., supra,* 57 F.4th at pp. 680-682; see also *id.* at p. 681 ["As 'arbitration is a matter of contract[,] ... a party cannot be required to submit to arbitration any dispute which he has not agreed so to submit.' "].) This action does not arise out of or have anything to do with plaintiff's purchase of the 2023 Rivian R1T or the relationship between the parties that was created by the purchase agreement for that vehicle. (Compare Ameripour Decl. at Ex. 1, with Compl., in passim.) It arises out of plaintiff's lease of an entirely different vehicle two years later and the relationship created by this separate, independent transaction. (See Compl. ¶ 9; see also *id.,* in passim.) Thus, the arbitration provision in the purchase agreement does not apply to the lease of the vehicle at issue in this case, and nothing shows plaintiff ever agreed to arbitrate any disputes arising out of this transaction. (See *Moritz v. Universal City Studios LLC, supra,* 54 Cal.App.5th at pp. 246-248; *Jackson v. Amazon.com, Inc., supra*, 65 F.4th at p. 1101; see also *Johnson v. Walmart Inc., supra,* 57 F.4th at pp. 680-682.) Defendant shall give notice.
208	**Holden vs. Royale Management Group, LLC** **2026-01539035**	**Motion Granting Relief from Courts** Defendant/respondent Royale Management Group, LLC's motion for relief from the court's 6/1/26 decision entered after an uncontested trial is DENIED. (See Code Civ. Proc., § 437, subd. (b).) This motion has been brought pursuant to the discretionary relief provision of Code of Civil Procedure section 473, subdivision (b) (section 473(b)).

		Defendant has failed to demonstrate the 6/1/26 uncontested decision was the result of "excusable" mistake, inadvertence, surprise, or neglect. For discretionary relief, the subject decision must be the result of a mistake, inadvertence, surprise, and/or neglect that is "excusable." (Code Civ. Proc., § 473, subd. (b); see *Zamora v. Clayborn Contracting Group, Inc*. (2002) 28 Cal.4th 249, 258 (*Zamora*); *Jackson v. Bank of America* (1983) 141 Cal.App.3d 55, 58 [for discretionary relief, " '[n]either mistake, inadvertence, or neglect will warrant relief unless upon consideration of all the evidence it is found to be of the excusable variety' "].) "The standard is whether ' "a reasonably prudent person under the same or similar circumstances" might have made the same error.' (*Bettencourt v. Los Rios Community College Dist.* (1986) 42 Cal.3d 270, 276, 228 Cal.Rptr. 190, 721 P.2d 71.)" (*Solv-All v. Superior Court* (2005) 131 Cal.App.4th 1003, 1007.) Here, RMG claims that its failure to appear at trial on 6/1/26 was due to its counsel's "inadvertent failure to enter the trial date into the firm's calendaring system after the date was timely transmitted internally for calendaring, and not from any fault of RMG." (Ntc. of Mtn., p. 2.) RMG's counsel explains that their office manager inadvertently failed to enter the trial date into the firm calendar, and that as a result, no attorney at the firm was alerted to go and appear. (Brunner Decl. ¶¶ 2-4, 6; Reeder Decl. ¶¶ 5-7.) But plaintiff/petitioner David W. Holden's evidence shows that on the evening of Friday 5/29/26—i.e., the last business day before trial on 6/1/26—plaintiff's counsel emailed defense counsel with plaintiff's "witness list" and "exhibit list" for trial, both of which inconspicuously listed a trial date of 6/1/26 on their cover pages, which should have alerted defense counsel of the trial on the following Monday. (Furcolo Decl. ¶¶ 3-4, Exs. D-E.) Defense counsel, however, has entirely failed to explain how they missed this. Sure, plaintiff's counsel served these trial documents via email to attorney Duncan McCreary at Reeder McCreary, LLP—i.e., RMG's primary and only attorney of record throughout this case from its first appearance in this matter through that date (e.g., ROA Nos. 33, 35, 45; Holden Decl. ¶ 5, Ex. B)—who had apparently just left the firm. (See Reply at p. 3:12-13.) But as RMG's counsel admits, a different attorney at the firm (now apparently known as Reeder, LLP), partner Christopher Reeder, "who was receiving Mr. McCreary's emails" following Mr. McCreary's departure, received and saw this email within ten

		minutes of service. (See Reply at p. 3:15-19; Furcolo Decl. ¶ 4, Ex. E [Mr. Reeder's response to the 5/29/26 email sent ten minutes later].) Any competent litigation attorney (especially a managing partner of a litigation firm, see Reeder Decl. ¶ 1) knows or should know that a "witness list" and "exhibit list" are typically served shortly before trial. This should have alerted Mr. Reeder that a trial date was imminent, and he could have checked the trial date simply by taking a look at the documents. But Mr. Reeder has entirely failed to explain how he missed the trial date listed on the witness list and exhibit list served the day before trial, or, if he did not bother to open the attachments in the first place, why he neglected to do so or how that neglect is "excusable" under the circumstances, particularly given the nature of the (trial) documents and the fact that Mr. McCreary had just departed the firm. There is also no explanation as to how or in what manner RMG's counsel discovered their failure to appear at trial. This complete lack of information as to whether, why, and how Mr. Reeder missed the trial date on the cover pages of the witness list and exhibit list served the day before trial, and how and when counsel even learned of their failure to appear, renders RMG's showing insufficient for discretionary relief. (See *Younessi v. Woolf* (2016) 244 Cal.App.4th 1137, 1146-1147; see also *Tackett v. City of Huntington Beach* (1994) 22 Cal.App.4th 60, 66 ["It is impossible for a court to characterize neglect as excusable when the attorney has not described what the neglect was."].) Plaintiff's request for judicial notice is GRANTED. (See Evid. Code § 452, subd. (d); see also *Kilroy v. State* (2004) 119 Cal.App.4th 140, 146-147.) Defendant shall give notice.
214	**Wei vs. Sarkis** **2025-01509812**	**Motion to Set Aside/Vacate Default** Cross-defendant Yilu Amanda Wei's motion to set aside the default entered on the cross-complaint on February 20, 2026 is DENIED. Wei has failed to meet her burden showing she did not receive proper notice of the service of the cross-complaint. See Code of Civil Procedure § 473.5. See also *Anastos v. Lee* (2004) 118 Cal.App.4^{th} 1314. Wei to give notice.